

		<i>Clerk to give notice.</i>
102	Legg vs. CSCDA Community Improvement Authority, 25-01492979	Defendant CSCDA Community Improvement Authority ("CSCDA") demurs to all causes of action in Plaintiffs' Complaint on the grounds that Plaintiffs failed to allege compliance with the claims presentation requirement of the Government Claims Act (Government Code §900 et seq.). Under the Government Claims Act, "no suit for money or damages may be brought against a [local] public entity ... until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board...." (Gov't Code § 945.4; <i>see also Barrios v. California Interscholastic Federation</i> (9th Cir. 2002) 277 F.3d 1128, 1136, fn. 6.) A "local public entity" is defined as "a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State...." (Gov't Code § 900.4.) Here, it is not clear from the face of the Complaint whether CSCDA is a public agency. CSCDA therefore asks this Court to take judicial notice of the following: 1. The CSCDA COMMUNITY IMPROVEMENT AUTHORITY is a Public Entity under California's Government Code §811.2, §945.4 and §6500. See Declaration of Kevin J. Price, Paragraph 3, and Exhibit A, thereto. 2. Exhibit A to the accompanying declaration of Kevin J. Price is a true and correct copy of the JOINT EXERCISE OF POWERS AGREEMENT RELATING TO THE CSCDA COMMUNITY IMPROVEMENT AUTHORITY. (Declaration of Kevin J. Price filed concurrently herewith, ¶ 3; Exhibit A thereto) (ROA 45, RJN.) Paragraph 3 of the declaration of Kevin J. Price states: "I am informed and believe and based thereon state that the CSCDA COMMUNITY IMPROVEMENT AUTHORITY is a Public Entity under California's Government Code §811.2, §945.4 and §6500." Kevin J. Price is counsel of record for Defendants in this case. (Price Decl., ¶ 1.) He lays no foundation for the statement that CSCDA is a public entity, and is only able to make that declaration on information and belief.

		Further, he lays no foundation for authentication of Exhibit A. He states that Exhibit A "is a true and correct copy of the document entitled "JOINT EXERCISE OF POWERS AGREEMENT RELATING TO THE CSCDA COMMUNITY IMPROVEMENT AUTHORITY" which I believe to be a true and correct copy of the document forming the public entity "CSCDA COMMUNITY IMPROVEMENT AUTHORITY" on or about October 15, 2020." (Price Decl. ¶ 4.) In sum, Price has not sufficiently authenticated Exhibit A, nor has he laid any foundation for his conclusion that CSCDA is a public entity within the meaning of the Government Claims Act. Whether CSCDA is a public entity is a disputed ultimate fact in this case. Thus, it cannot be said that the Complaint is deficient for failure to allege compliance with the Government Claims Act. Accordingly, the demurrer is OVERRULED. CSCDA shall file its answer within 20 days. Defendants' requests for judicial notice are DENIED. The materials requested to be judicially noticed are not the proper subject of judicial notice. Plaintiffs' requests for judicial notice are DENIED as immaterial to the resolution of this demurrer. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>CSCDA to give notice.</i>
103	Club Speed, LLC vs. K1 Speed, Inc., 22-01241507	Defendants Outlier K1S Equity Holdings, LLC and David Tedesco (collectively, "Outlier Defendants") demur to the third and fifth causes of action of plaintiff Club Speed, LLC's ("Clubspeed" or "Plaintiff") First Amended Complaint (FAC). <i>Intentional Interference with Contract</i> Outlier Defendants argue this cause of action fails to allege sufficient facts because there are no specific actions alleged against them, Plaintiff improperly attempts to lump all defendants together, and the allegations are made on information and belief without including any information that led Plaintiff to believe the allegations to be true. Outlier Defendants further argue that in a proposed second amended complaint attached to Plaintiff's motion for leave to amend, which was withdrawn before being heard, Plaintiff fails to allege that they made any of the alleged false or disparaging statements to K1 franchisees.